

Illinois Compiled Statutes (ILCS)

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(625 ILCS 5/2-130)

Sec. 2-130. User of automated license plate readers; prohibitions.

(a) As used in this Section:

"Automated license plate reader" or "ALPR" means an electronic device that is mounted on a law enforcement vehicle or positioned in a stationary location and that is capable of recording data on or taking a photograph of a vehicle or its license plate and comparing the collected data and photographs to existing law enforcement databases for investigative purposes. "ALPR" includes a device that is owned or operated by a person or an entity other than a law enforcement agency to the extent that data collected by the reader is shared with a law enforcement agency.

"ALPR information" means information gathered by an ALPR or created from the analysis of data generated by an ALPR.

"ALPR systems" means multi-agency or vendor agreements that allow the sharing of ALPR information collected in Illinois.

"ALPR user" means a person or entity that owns or operates an ALPR device.

"Law enforcement agency" means a State or local agency, unit of local government, or private entity charged with the enforcement of State, county, or municipal laws or with managing custody of detained persons in any state or jurisdiction.

(b) An ALPR user shall not sell, share, allow access to, or transfer ALPR information to any state or local jurisdiction for the purpose of investigating or enforcing a law that:

(1) denies or interferes with a person's right to choose or obtain reproductive health care services or any lawful health care services as defined by the Lawful Health Care Activity Act; or

(2) permits the detention or investigation of a person based on the person's immigration status.

(c) Any ALPR user in this State, including any law enforcement agency of this State that uses ALPR systems, shall not share ALPR information with an out-of-state law enforcement agency without first obtaining a written declaration from the out-of-state law enforcement agency that it expressly affirms that ALPR information obtained shall not be used in a manner that violates subsection (b). If a written declaration of affirmation is not executed, the law enforcement agency shall not share the ALPR information with the out-of-state law enforcement agency.

(d) ALPR information shall be held confidentially to the fullest extent permitted by law.

(e) Nothing in this Act shall define or limit any rights under the Reproductive Health Act.

(Source: P.A. 103-540, eff. 1-1-24.)